

eSign Consent

Consumer Disclosure - Conducting business electronically, receiving electronic notices and disclosures, and signing documents electronically.

Please read the following information **before signing this consent and the following closing documents**. By proceeding forward and signing this document you are agreeing that you have reviewed the following consumer disclosure information and consent to transact business using electronic communications, to receive notices and disclosures electronically, and to utilize electronic signatures in lieu of using paper documents. You understand electronic signatures are equivalent to traditional signatures, and equally binding. This electronic signature service is provided on behalf of clients, "requesting party," whom are sending electronic documents, notices, disclosures or requesting electronic signatures to you. If there is no third-party "requesting party," you are deemed the "requesting party". You are not required to sign documents electronically. If you prefer not to do so you may request to receive paper copies and withdraw your consent at any time as described below.

Paper Copies:

You are not required to receive notices or disclosures or sign documents electronically and may request paper copies of documents or disclosures if you prefer to do so. You also have the ability to download and print any open or signed documents sent to you through the electronic signature system. If you wish to receive paper copies in lieu of electronic documents, you may close this web browser and request paper copies from the "requesting party" by following the procedures outlined below. The "requesting party" may apply a charge for requesting paper copies.

Withdrawal of Consent:

You may withdraw your consent to receive electronic documents, notices or disclosures at any time. In order to withdraw consent, you must notify the "requesting party" that you wish to withdraw consent and to provide your future documents, notices, and disclosures in paper format. After withdrawing consent if at any point in the future you proceed forward and utilize the electronic signature system you are once again consenting to receive notices, disclosure, or documents electronically. You may withdraw consent to receive electronic notices and disclosures and optionally electronically signatures by following the procedures described below.

Scope of Consent:

You agree to receive electronic notices, disclosures, and electronic signature documents with all related and identified documents and disclosures provided over the course of your relationship with the "requesting party." You may at any point withdraw your consent by following the procedures described below.

Requesting paper copies, withdrawing consent, and updating contact information. You have the ability to download and print any documents we send to you through the electronic signature system. To request paper copies of documents or withdraw consent to conduct business electronically (i.e. receive documents, notices, or disclosures electronically or sign documents electronically) please contact the "requesting party" by telephone, postal mail, or by sending an email to the "requesting party" with the following subjects:

"Requesting Paper Copies" provide name, email, telephone number, postal address and document title.

"Withdraw Consent" provide name, email, date, telephone number, postal address.

"Update Contact Information" provide name, email, telephone number and postal address Any fees associated with requesting paper copies or withdrawing consent will be determined by the "requesting party."

Required hardware:

- Desktop or laptop computer
- Web camera

Required Software:

- Chrome or Firefox browser. Browsers must have cookies enabled.
- You will need an up to date pdf viewer, like Acrobat Reader to view signed documents.

Teresa Sordo

9/23/2025

Signature

Date

Signature

Date

THIS INSTRUMENT PREPARED BY OR UNDER
THE SUPERVISION OF (AND UPON RECORDING,
RETURN TO):

Thomas F. Oppenheimer, Esq.
Fox Rothschild LLP
2 S. Biscayne Blvd., Suite 2750
Miami, Florida 33131

SPACE ABOVE THIS LINE FOR PROCESSING DATA

MEMORANDUM OF LEASE

THIS MEMORANDUM OF LEASE (this “Memorandum”) is executed as of September 23, 2025, between SUNSET-MIAMI INVESTMENTS, INC., a Florida corporation (“Landlord”) whose address is c/o Quesada Valdes, PLLC, 1313 Ponce de Leon Boulevard, Suite 200, Coral Gables, Florida 33134, and ALTA SUNSET II LLC, a Florida limited liability company (“Tenant”), whose address is c/o Alta Developers, LLC, 2950 Southwest 27th Avenue, Suite 220, Miami, Florida 33133.

RECITALS:

A. Alta Sunset, LLC, a Florida limited liability company (“Original Tenant”) and Landlord entered into that certain Ground Lease (“Original Ground Lease”), dated as of August 31, 2018, as amended by that certain Amendment to Ground Lease, dated as of September 8, 2020 (the “First Amendment”), as amended by that certain Second Amendment to Ground Lease, dated as of March 14, 2022 (the “Second Amendment”), as amended by that certain Third Amendment to Ground Lease, dated as of May, 2023 (the “Third Amendment”), and as further amended by that certain Fourth Amendment to Ground Lease, dated as of September 30, 2024 (the “Fourth Amendment” and together with the Original Ground Lease, the First Amendment, the Second Amendment, and the Third Amendment, the “Lease”), for certain real property located in the City of South Miami, State of Florida, located at 6075 Sunset Drive, South Miami, Florida 33143, as more particularly described in the Lease (the “Demised Premises”).

B. The Lease has been assigned by Original Tenant to Tenant pursuant to that certain Assignment and Assumption of Ground Lease, dated as of _____, 2025, with the consent of Landlord.

C. Landlord and Tenant enter into this Memorandum of Lease for the purpose of memorializing the Lease and recording this Memorandum among the Official Records of Miami-Dade County, Florida.

AGREEMENTS:

NOW, THEREFORE, Landlord and Tenant, in consideration of the mutual promises contained in the Lease and herein, agree and acknowledge, for notice and recording purposes only, that the Lease contains, among other things, the following:

1. **Name and Address of Landlord.**

Sunset-Miami Investments, Inc.
c/o Quesada Valdes, PLLC
1313 Ponce de Leon Boulevard
Suite 200
Coral Gables, Florida 33134

2. **Name and Address of Tenant.**

Alta Sunset II LLC
c/o Alta Developers, LLC
2950 Southwest 27th Avenue
Suite 220
Miami, Florida 33133

3. **Description of the Lease.** The above referenced Lease, the terms and conditions of which are incorporated herein by reference.

4. **Description of the Demised Premises.** The Demised Premises consists of the real property located at 6075 Sunset Drive, South Miami, Florida 33143, as more particularly described on Exhibit A attached hereto and incorporated herein.

5. **Term of Lease.** The Lease commenced as of September 1, 2018, and expires on August 31, 2117, together with any extension or renewal options set forth in the Lease.

6. **Binding Effect; Governing Law.** This Memorandum shall be binding upon Tenant and Landlord and their respective successors and assigns. If any inconsistency exists or arises between the terms of this Memorandum and the terms of the Lease, the terms of the Lease shall prevail. This Memorandum is for notice purposes only and does not amend, supplement, or interpret the Lease. This Memorandum shall be governed by the laws of the State of Florida.

7. **Counterparts.** This Memorandum may be executed in multiple counterparts, each of which shall constitute an original, but all of which shall constitute one document.

[Signature pages follow]

Executed as of the date first above written.

Witnesses:

Signed, sealed and delivered in our presence:

x Veronica Y. Manning-McNeil
Printed Name: Veronica Y Manning-McNeil
Address: 6130 Windrush Court, N Chesterfield, VA. 23234

Rwanda I. Reed
Printed Name: Rwanda I. Reed
Address: 15 Clairford ct Halethorpe MD 21227

LANDLORD:

SUNSET-MIAMI INVESTMENTS, INC., a
Florida corporation

By: Teresa Sordo
Name: Teresa Sordo
Title: President

STATE OF Maryland)
COUNTY OF Baltimore) ss:

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☒ online notarization, this 23 day of September, 2025 by Teresa Sordo, as President of Sunset-Miami Investments, Inc., a Florida corporation who (check one below):

☐ is personally known or
☒ has produced Passport as identification.



Rwanda I. Reed
(Signature of person taking acknowledgment)
Rwanda I Reed
(Name typed, printed or stamped)
Notary Public
(Title or rank)
N/A
(Serial number, if any)

[Signatures continued on following page]

Completed via Remote Online Notarization using 2 way Audio/Video technology.

Witnesses:

Signed, sealed and delivered in our presence:

TENANT:

x _____
Printed Name: _____
Address: _____

ALTA SUNSET II LLC, a Florida limited liability company

By: Alta Sunset II Holdings LLC, a Delaware limited liability company, its sole member

x _____
Printed Name: _____
Address: _____

By: Alta Sunset II Holdco, LLC, a Florida limited liability company, its managing member

By: Alta Sunset Investors II LLC, a Florida limited liability company, its sole member

By: APM Sunset II LLC, a Florida limited liability company, its manager

By: _____
Name: Felipe Raimundo Onetto
Title: Management Committee Member

By: _____
Name: Juan Ignacio Montes Labarca
Title: Management Committee Member

STATE OF FLORIDA)
) ss:
COUNTY OF MIAMI-DADE)

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this ____ day of _____ 2025 by Felipe Raimundo Onetto and Juan Ignacio Montes Labarca, as Management Committee Members of APM Sunset II LLC, a Florida limited liability company, which is the manager of Alta Sunset Investors II LLC, a Florida limited liability company, which is the sole member of Alta Sunset II Holdco, LLC, a Florida limited liability company, which is the managing member of Alta Sunset II Holdings LLC, a Delaware limited liability company, which is the sole member of Alta Sunset II LLC, a Florida limited liability company, on behalf of the foregoing companies, who (check one below):

- ☐ is personally known or
☐ has produced _____ as identification.

(Signature of person taking acknowledgment)

[NOTARIAL SEAL]

(Name typed, printed or stamped)

(Title or rank)

(Serial number, if any)

EXHIBIT A

LEGAL DESCRIPTION

All of Tract A, less the East 118 feet of the North 129.07 feet, in Block 1, and Lot 3, in Block 1, of ROSSWOOD, according to the Plat thereof, recorded in Plat Book 13, at Page 62, in the Public Records of Miami-Dade County, Florida, less the South 25 feet of said Block 1.

CONSENT TO ASSIGNMENT OF GROUND LEASE

This Consent to Assignment of Ground Lease (“**Consent**”), dated as of September 23, 2025 (the “**Effective Date**”), is entered into among SUNSET-MIAMI INVESTMENTS, INC., a Florida corporation, whose address is 1313 Ponce De Leon Boulevard, Suite 200, Coral Gables, Florida 33134 (“**Landlord**”), ALTA SUNSET, LLC, a Florida limited liability company, whose address is c/o Alta Developers LLC, 2950 SW 27th Avenue, Suite 220, Miami, Florida 33133 (“**Tenant**” or “**Assignor**”), and ALTA SUNSET II LLC, a Florida limited liability company, whose address is c/o Alta Developers LLC, 2950 SW 27th Avenue, Suite 220, Miami, Florida 33133 (“**Assignee**” and, together with Landlord and Tenant, collectively referred to herein as the “**Parties**”).

RECITALS

WHEREAS, Landlord is the owner and landlord of the real property located at 6075 Sunset Drive in South Miami, Florida (the “**Property**”).

WHEREAS, Landlord and Tenant have entered into a Ground Lease, dated as of August 31, 2018 (“**Original Ground Lease**”), as amended by that certain Amendment to Ground Lease, dated as of September 8, 2020 (the “**First Amendment**”), as amended by that certain Second Amendment to Ground Lease, dated as of March 14, 2022 (the “**Second Amendment**”), as amended by that certain Third Amendment to Ground Lease, dated as of May, 2023 (the “**Third Amendment**”), and as further amended by that certain Fourth Amendment to Ground Lease, dated as of September 30, 2024 (the “**Fourth Amendment**” and together with the Original Ground Lease, the First Amendment, the Second Amendment, and the Third Amendment, the “**Lease**”) for the lease of the Property.

WHEREAS, Tenant desires to assign all of its rights and obligations as tenant under the Lease to Assignee and Assignee wishes to accept the assignment of the Lease and assume all of the obligations as tenant under the Lease pursuant to the terms and conditions of that certain Assignment and Assumption of Lease dated as of _____, 2025, a copy of which is attached to this Consent as Exhibit A (the “**Assignment**”).

WHEREAS, Landlord is willing to consent to the Assignment subject to the terms and conditions set forth in this Consent.

NOW, THEREFORE, in consideration of the mutual covenants, terms and conditions set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. Consent to Assignment of Lease. Subject to the terms of this Consent, Landlord hereby consents to: (a) Tenant's assignment of its rights and obligations under the Lease to Assignee; and (b) Assignee's assumption of Tenant's rights and obligations under the Lease, both pursuant to and in accordance with the Assignment.
2. No Modification, Waiver or Release. Notwithstanding any provision in this Consent, the Lease or the Assignment to the contrary: (a) this Consent shall not be construed in any manner to modify, waive or affect any of the provisions of the Lease, or to waive any breach or default by Tenant under the Lease; and (b) Tenant shall not be released from, and Tenant shall be and remain liable for, the performance and observance of any and all tenant obligations and all of the provisions of the Lease, including, without limitation, the payment of fixed rent, additional rent and all other sums now or hereafter due under the Lease.
3. Assignee's Assumption of Lease. Assignee, from and after the date of the Assignment, hereby assumes the performance and observance of any and all tenant obligations and all of the provisions of the Lease, including, without limitation, the payment of fixed rent, additional rent and all other sums due under the Lease.
4. No Further Assignment or Subletting. This Consent shall not be construed as a consent by Landlord to, or as permitting, any other or further assignment or subletting by Tenant or Assignee.

5. Miscellaneous.

(a) This Consent may not be changed or terminated orally or in any manner other than by a written agreement signed by Landlord, Tenant and Assignee.

(b) All capitalized terms not defined herein shall have the meanings given to them in the Lease, a true and correct copy of which Assignee hereby acknowledges receipt.

(c) The paragraph headings appearing herein are for purposes of convenience only and are not deemed to be part of this Consent.

(d) This Consent may be executed in counterparts, each of which when so executed and delivered shall be deemed an original for all purposes, but all such counterparts shall together constitute one and the same instrument.

(e) A signed copy of this Consent delivered by e-mail shall be deemed to have the same legal effect as delivery of an original signed copy of this Consent. Electronic signatures (including via DocuSign or similar) are binding.

(f) This Consent is governed by, and must be construed in accordance with, the laws of the State of Florida, without regard to conflicts-of-law rules.

[SIGNATURE PAGE FOLLOWS]

IN WITNESS WHEREOF, the Parties have caused this Consent to be executed as of the Effective Date for all purposes.

TENANT:

ALTA SUNSET, LLC, a Florida limited liability company

By: ASM Sunset, LLC, a Florida limited liability company, its Manager

By: _____
Name: Raimundo Onetto
Title: Management Committee Member

By: _____
Name: Juan Ignacio Montes Labarca
Title: Management Committee Member

ASSIGNEE:

ALTA SUNSET II LLC,
a Florida limited liability company

By: Alta Sunset II Holdings LLC,
a Delaware limited liability company, its sole member

By: Alta Sunset II Holdco, LLC, a Florida limited liability company, its managing member

By: Alta Sunset Investors II LLC, a Florida limited liability company, its sole member

By: APM Sunset II LLC, a Florida limited liability company, its manager

By: _____
Name: Felipe Raimundo Onetto
Title: Management Committee Member

By: _____
Name: Juan Ignacio Montes Labarca
Title: Management Committee Member

LANDLORD:

SUNSET-MIAMI INVESTMENTS, INC., a Florida corporation

By: *Teresa Sordo*
Name: Teresa Sordo
Title: President

EXHIBIT A

ASSIGNMENT

(see attached)

ASSIGNMENT AND ASSUMPTION OF GROUND LEASE

THIS ASSIGNMENT AND ASSUMPTION OF GROUND LEASE (this “**Assignment**”), is made and entered into as of September 23, 2025 (the “**Effective Date**”), by and between Alta Sunset, LLC, a Florida limited liability company (“**Assignor**”), whose address is 2950 SW 27 Avenue, Suite 210, Miami, FL 33133, and Alta Sunset II LLC, a Florida limited liability company (“**Assignee**”), whose address is 2950 SW 27 Avenue, Suite 210, Miami, FL 33133.

RECITALS

WHEREAS, Assignor is an indirect owner of Assignee; and

WHEREAS, Assignor has agreed to assign to Assignee, and Assignee has agreed to assume, Assignor’s leasehold interest as tenant (together with all rights and obligations relating thereto) under that certain Ground Lease, dated as of August 31, 2018 (“**Original Ground Lease**”) between Assignor and Sunset-Miami Investments, Inc., a Florida corporation (“**Landlord**”), as amended by that certain Amendment to Ground Lease, dated as of September 8, 2020 (the “**First Amendment**”), as amended by that certain Second Amendment to Ground Lease, dated as of March 14, 2022 (the “**Second Amendment**”), as amended by that certain Third Amendment to Ground Lease, dated as of May, 2023 (the “**Third Amendment**”), and as further amended by that certain Fourth Amendment to Ground Lease, dated as of September 30, 2024 (the “**Fourth Amendment**” and together with the Original Ground Lease, the First Amendment, the Second Amendment, and the Third Amendment, the “**Lease**”), for certain real property located in the City of South Miami, State of Florida, located at 6075 Sunset Drive, South Miami, Florida 33143, as more particularly described in the Lease (the “**Property**”).

NOW, THEREFORE, in consideration of the premises, other good and valuable consideration, and the mutual covenants and agreements hereinafter set forth, the parties hereto hereby agree as follows:

1. Assignment by Assignor. As of the Effective Date, Assignor hereby sells, conveys, transfers, assigns, and delivers to Assignee, its successors and assigns, all of Assignor’s right, title, and interest in, to, and under the Lease (including all of Assignor’s right, title, and interest in and to the leasehold estate in the Property), including all security deposits, Deposit and Escrow Funds (as defined in the Lease), prepaid rents, options, rights, and privileges appurtenant thereto. Assignor will indemnify, defend, and hold harmless Assignee from and against any loss, cost, claim, damage, liability, penalty, or expense (including reasonable attorneys’ fees and costs) of whatever kind or nature to the extent arising out of any claim, liability, or obligation under the Lease to the extent arising from events, acts, omissions, or breaches occurring prior to the Effective Date.

2. Assumption by Assignee. Assignee hereby accepts the foregoing assignment and irrevocably and unconditionally assumes and, effective from and after the Effective Date, agrees to pay, perform, and observe fully and timely all of Assignor’s duties, obligations, liabilities, and covenants under the Lease accruing on and after the Effective Date. Assignee will indemnify, defend, and hold harmless Assignor from and against any loss, cost, claim, damage, liability, penalty, or expense (including reasonable attorneys’ fees and costs) of whatever kind or nature to

the extent arising out of any claim, liability, or obligation under the Lease to the extent arising from events, acts, omissions, or breaches occurring on or after the Effective Date.

3. Landlord Consent. Landlord has consented or will have consented, as a condition to the effectiveness of this Assignment, to the assignment and assumption of the Lease from Assignor to Assignee pursuant to that certain Consent to Assignment of Lease executed by Landlord and dated as of _____, 2025 (the “**Landlord Consent**”). This Assignment will be of no force or effect unless and until the Landlord Consent is executed and delivered.

4. Governing Law; Venue; Waiver of Jury Trial. This Assignment is governed by, and construed and enforced in accordance with, the laws of the State of Florida, without regard to its conflicts of law rules. Each party consents to exclusive jurisdiction and venue in the state courts located in Miami-Dade County, Florida (and the Southern District of Florida for federal jurisdiction). EACH PARTY WAIVES TRIAL BY JURY TO THE FULLEST EXTENT PERMITTED BY LAW.

5. Binding Effect; No Third-Party Beneficiaries. This Assignment will be binding upon and inure to the benefit of the parties and their respective successors and assigns. Nothing in this Assignment is intended to confer any rights, remedies, or claims upon any Person other than the parties and, with respect to Section 3, the Landlord.

6. Counterparts; Electronic Signatures. This Assignment may be signed in any number of counterparts, each of which will be deemed an original and all of which together will constitute one and the same instrument. Signatures delivered by PDF, electronic signature (including DocuSign or similar), or other electronic means will be deemed original for all purposes.

7. No Modification of Lease; Conflicts. Except as expressly provided herein, nothing in this Assignment amends or modifies the Lease. In the event of a conflict between this Assignment and the Lease concerning the assignment and assumption, this Assignment will control.

[Signature page follows this page]

IN WITNESS WHEREOF, Assignor and Assignee have executed this Assignment as of the date first above written.

ASSIGNOR:

ALTA SUNSET, LLC, a Florida limited liability company

By: ASM Sunset, LLC, a Florida limited liability company, its Manager

By: _____

Name: Raimundo Onetto

Title: Management Committee Member

By: _____

Name: Juan Ignacio Montes Labarca

Title: Management Committee Member

ASSIGNEE:

ALTA SUNSET II LLC, a Florida limited liability company

By: Alta Sunset II Holdings LLC, a Delaware limited liability company, its sole member

By: Alta Sunset II Holdco, LLC, a Florida limited liability company, its managing member

By: Alta Sunset Investors II LLC, a Florida limited liability company, its sole member

By: APM Sunset II LLC, a Florida limited liability company, its manager

By: _____

Name: Felipe Raimundo Onetto

Title: Management Committee Member

By: _____

Name: Juan Ignacio Montes Labarca

Title: Management Committee Member

Signature page to Assignment and Assumption of Ground Lease